

Document

Exhibit 10.47

CERTAIN INFORMATION, IDENTIFIED BY AND REPLACED WITH A MARK OF “[

]” HAS BEEN EXCLUDED FROM THIS DOCUMENT BECAUSE IT IS BOTH (I) NOT MATERIAL AND (II) THE TYPE THAT THE REGISTRANT TREATS AS PRIVATE OR CONFIDENTIAL.

FORM OF SUBSCRIPTION AGREEMENT AND MATERIALS FOR

PARTICIPANTS IN THE LONG TERM EXECUTIVE CARRIED INTEREST INCENTIVE PROGRAM

Exhibit 10.47

Individual and Entity

FORM OF SUBSCRIPTION MATERIALS FOR

PARTICIPANTS IN THE LONG TERM EXECUTIVE CARRIED INTEREST INCENTIVE PROGRAM

[] (the “Fund”)

Class A Limited Partnership Interests

1

Class O Limited Partnership Interests

[]

SUBSCRIBER SIGNATURE PAGE, CONSENT AND POWER OF ATTORNEY

I.

PERSONAL INFORMATION

GS Offeree’s Name

Employee ID #

Office Location

These Subscription Agreement and Materials, including the supplement provided to you as Annex B (the “

Supplement

”), relate to the issuance of Class O Interests (as defined below) in [] (the “Fund

”). All references herein to the “Partnership Agreement” shall refer to the agreement of limited partnership of the Fund, as amended or restated through the date hereof and (iii) the “Offering Memorandum” shall refer to the Offering Memorandum of the Fund, as supplemented or amended through the date hereof (other than by the Supplement) and (iv) the “Subscription Agreement” shall refer to the Subscription Agreement of the Fund provided to you as Annex A. Capitalized terms not otherwise defined in these Subscription Materials have the same meaning set forth in the Partnership Agreement or the Offering Memorandum.

You may either invest directly in the Fund (in which case you are both the “Subscriber” and the “GS Offeree” for purposes of this agreement) or offer your investment opportunity to an entity that you control (in which case you are the “GS Offeree” and such entity is the “Subscriber” for purposes of this agreement). Please enter the Subscriber name and check the appropriate box indicating the Subscriber for your investment opportunity and, if the Subscriber is an entity, complete the “Investor Certification – Entity” form:

Subscriber Name: _____

□

Self

□

Corporation
#9633;
Partnership
#9633;
LLC
#9633;
Trust

1

Class A Limited Partnership Interests represent the required minimum equity capital commitment with respect to the Class O Limited Partnership Interests.

I.
ACCEPTANCE OF CLASS O INTERESTS AND SUBSCRIPTION REQUEST

The minimum allowable equity capital commitment is detailed in the table below#58;

Fund
Minimum Equity Capital Commitment

#91; #93;

#91; #93;

ACCEPTANCE OF CLASS O INTERESTS

I irrevocably

ACCEPT

the opportunity to participate in the Fund with respect to the Class O Interests (#8220;
Class O Interests

#8221;) being offered to the GS Offeree, that will be granted as of #91; #93;. The Class O Interests offered to the GS Offeree have been communicated separately.

I acknowledge and affirm that my participation in this opportunity is subject to the acceptance of my request, in whole or in part, by the Fund.

Class O Interests are entitled to share in a portion of any Carried Interest that may be earned from the applicable external funds as described in the Offering Memorandum (including, as applicable, one or more of the External Funds, and any other funds, entities, separate accounts and#47;or single investor vehicles managed or advised by Goldman Sachs Asset #38; Wealth Management, in each case, as described in the Offering Memorandum) (each, a #8220;

Carried Interest Paying Fund
,#8221; and collectively, the #8220;

Carried Interest Paying Funds
#8221;) subject to the return hurdles, notch amounts and other limits described in the offering memorandum of each Carried Interest Paying Fund and#47;or the Supplement.

I understand (i)#160;that the vesting dates for the Class O Interests are set forth in the Supplement and are one year later than the vesting dates set forth in the Offering Memorandum, (ii)#160;my obligations under the GS Agreements (including the terms of the non-compete provisions), (iii)#160;the illiquid nature of the Class O Interests and (iv)#160;the tax consequences associated with the Carried Interest (as defined in the Offering Memorandum).#160; I further understand that (a) I should not expect to receive any distributions (other than potentially tax distributions) in respect of the Carried Interest before #91; #93; (if ever), (b) I may recognize substantial amounts of taxable income in each year, the taxes on which may exceed the amount of any distribution from the Fund in that year, (c) by accepting this opportunity, I am granting Goldman Sachs the right to net any amounts owed under the Employee Special Investments Program, or from other sources, as described in the Offering Memorandum and Subscription Agreement, (d) notwithstanding anything to the contrary in the Partnership Agreement or the Offering Memorandum, distributions in respect of the Carried Interests will be subject to the Incremental Hurdle and #8220;catch-up#8221; mechanics described in the Supplement and (e) the Fund reserves the right, in its sole discretion, to establish and offer to investors one or more additional series or classes of interests with terms that may be different from those described herein and in the Supplement, at any time (any such offering, a #8220;

Re-Offer

and, including interests that are entitled to share in a portion of any Carried Interest that may be earned from the applicable Carried Interest Paying Funds and, if any Re-Offers are conducted, the amount of Carried Interest allocated to me may be delayed or reduced (as compared to the amounts that would have been allocated if no Re-Offers had occurred).

By executing the Subscriber Signature Page, I am confirming my understanding of, and agreement to, the terms as described in the provisions set forth herein and in the Offering Memorandum and the Supplement with respect to the Carried Interest and its potential consequences, notwithstanding anything to the contrary in any

2
documents I have received or may receive in connection with any other Goldman Sachs employee funds in which I may own an interest.
PLEASE ENTER SUBSCRIPTION REQUEST AMOUNT ON THE NEXT PAGE.

3
SUBSCRIPTION REQUEST

To the extent different from the GS Offeree, the Subscriber identified in Section I irrevocably REQUESTS

the opportunity to participate in the Fund with respect to the Class O Interests being offered to the GS Offeree. Both the Subscriber and the undersigned GS Offeree (a) re-affirm the Subscription Agreement, including the representations, consents, agreements and power of attorney contained therein, which Subscription Agreement the Subscriber and GS Offeree had acknowledged and affirmed in connection with the most recent prior offering by the Fund, as of the date hereof and (b) acknowledge and affirm that the Subscriber's participation in the Fund is subject to acceptance of the Subscriber's subscription request, in whole or in part, by the Fund. Notwithstanding the provisions of the Subscription Agreement of the Fund, these Subscription Materials are governed by and shall be construed in accordance with the internal laws of the State of Delaware applicable to a contract made and performed wholly within the State of Delaware.

Interests

Amount

Class A Unlevered Equity Capital Commitment

US\$ _____

Class O Carried Interest

Election to Receive Class O Interests

(PLEASE INITIAL AS APPROPRIATE)

I ACCEPT _____

I DECLINE _____

Please note that in order to participate in the Fund, the GS Offeree (or its controlled entity that is the Subscriber) must qualify as an "accredited investor" under the income test set forth in Rule 501(a)(6) of Regulation D under the U.S. Securities Act of 1933, as detailed on pages 91; 93; and 91; 93; of these Subscription Materials, or in the case of a controlled entity, under another provision of Rule 501(a)

Goldman Sachs reserves the right, in its sole discretion, to reduce in whole or in part your subscription amount proportionally or otherwise, including, without limitation, the proportion of Carried Interest to which any Class O Interest(s) issued to you relate, with or without adjusting any related capital commitments.

PLEASE CONTINUE ON THE NEXT PAGE.

4

II.

PAYMENT INSTRUCTIONS

91; 93;

III.

AUTHORIZATION TO DEBIT BROKERAGE ACCOUNT AND TO DEPOSIT DISTRIBUTION INTO BROKERAGE ACCOUNT

[]

PLEASE COMPLETE THE APPLICABLE INVESTOR CERTIFICATIONS (PAGE [] IF THE SUBSCRIBER IS AN INDIVIDUAL AND PAGES [] IF THE SUBSCRIBER IS AN ENTITY).

5

INVESTOR CERTIFICATION – INDIVIDUAL

[]

6

INVESTOR CERTIFICATION – ENTITY

[]

7

[CERTAIN TAX FORMS]

[]

8

DISQUALIFYING EVENTS CERTIFICATION

In connection with the Fund’s obligations relating to “Disqualifying Events” pursuant to Rule 506(d) of the U.S. Securities Act of 1933, as amended (the “1933 Act”), please indicate below whether any of the following (which are “Disqualifying Events” as provided in Rule 506(d) of the 1933 Act) have occurred with respect to you (or any other person with whom you are subscribing, including your spouse, if applicable).

Check all applicable boxes and provide the details of any such Disqualifying Events below. “Disqualifying Event” includes any of (i) – (viii) below.

You must check at least one box below

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□

None of the below have occurred with respect to you (or any other person with whom you are subscribing, including your legal spouse, if applicable).

□

(i) a conviction, within the past ten years, of any felony or misdemeanor: (A) in connection with the purchase or sale of any security; (B) involving the making of any false filing with the U.S. Securities and Exchange Commission (the “Commission”); or (C) arising out of the conduct of the business of an underwriter, broker, dealer, municipal securities dealer, investment adviser or paid solicitor of purchasers of securities;

□

(ii) being subject to any order, judgment or decree of any court of competent jurisdiction, entered within the past five years, that, as of the date hereof, restrains or enjoins such person from engaging or continuing to engage in any conduct or practice: (A) in connection with the purchase or sale of any security; (B) involving the making of any false filing with the Commission; or (C) arising out of the conduct of the business of an underwriter, broker, dealer, municipal securities dealer, investment adviser or paid solicitor of purchasers of securities;

□

(iii) being subject to a final order of a state securities commission (or an agency or officer of a state performing like functions); a state authority that supervises or examines banks, savings associations, or credit unions; a state insurance commission (or an agency or officer of a state performing like functions); an appropriate federal banking agency; the U.S. Commodity Futures Trading Commission (the “CFTC”); or the National Credit Union Administration that: (A) as of the date hereof, bars the person from: (1) association with an entity regulated by such commission, authority, agency, or officer; (2) engaging in the business of securities, insurance or banking; or (3) engaging in savings association or credit union activities; or (B) constitutes a final order based on a violation of any law or regulation that prohibits fraudulent, manipulative, or deceptive conduct entered within the past ten years;

□

(iv) being subject to an order of the Commission entered pursuant to section 15(b) or 15B(c) of the U.S. Commodity Exchange Act, as amended, and its rules and regulations (the “Exchange

Act (15 U.S.C. 78o(b) or 78o-4(c)) or section 203(e) or (f) of the Investment Advisers Act (15 U.S.C. 80b-3(e) or (f)) that, as of the date hereof: (A) suspends or revokes such person's registration as a broker, dealer, municipal securities dealer or investment adviser; (B) places limitations on the activities, functions or operations of such person; or (C) bars such person from being associated with any entity or from participating in the offering of any penny stock;

9

□

(v) being subject to any order of the Commission entered within the past five years that, as of the date hereof, orders the person to cease and desist from committing or causing a violation or future violation of: (A) any scienter-based anti-fraud provision of the federal securities laws, including without limitation section 17(a)(1) of the 1933 Act (15 U.S.C. 77q(a)(1)), section 10(b) of the Exchange Act (15 U.S.C. 78j(b)) and 17 CFR 240.10b-5, section 15(c)(1) of the Exchange Act (15 U.S.C. 78o(c)(1)) and section 206(1) of the Investment Advisers Act (15 U.S.C. 80b-6(1)), or any other rule or regulation thereunder; or (B) section 5 of the 1933 Act (15 U.S.C. 77e);

□

(vi) being suspended or expelled from membership in, or suspended or barred from association with a member of, a registered national securities exchange or a registered national or affiliated securities association for any act or omission to act constituting conduct inconsistent with just and equitable principles of trade;

□

(vii) having filed (as a registrant or issuer), or was named as an underwriter in, any registration statement or Regulation A offering statement filed with the Commission that, within the past five years, was the subject of a refusal order, stop order, or order suspending the Regulation A exemption, or is, as of the date hereof, the subject of an investigation or proceeding to determine whether a stop order or suspension order should be issued; or

□

(viii) being subject to a United States Postal Service false representation order entered within the past five years, or is, as of the date hereof, subject to a temporary restraining order or preliminary injunction with respect to conduct alleged by the United States Postal Service to constitute a scheme or device for obtaining money or property through the mail by means of false representations.

If you check any of (i) - (viii) above, please contact Employee Special Investments and provide the dates and the summary of each Disqualifying Event in the space below.

You may be required to provide additional information.

Disqualified Person.

A person who has committed a Disqualifying Event.

Disqualified Person Disclosure.

Any information provided to the Subscriber disclosing whether certain persons are Disqualified Persons, including the Fund, any affiliated issuer, any director, executive officer, other officer participating in the offering, general partner or managing member of the Fund; any beneficial owner of 20% or more of the Fund's outstanding voting equity securities, calculated on the basis of voting power; any promoter connected with the Fund in any capacity; any investment manager of the Fund; any person that has been or will be paid (directly or indirectly) remuneration for solicitation of purchasers in connection with the sale of Interests; any general partner or managing member of any such investment manager or solicitor; or any

10

director, executive officer or other officer participating in the offering of any such investment manager or solicitor or general partner or managing member of such investment manager or solicitor.

Disqualified Person Disqualification.

Except as disclosed in your response to the question above and any additional information requested by Goldman Sachs (as defined in the Offering Memorandum), no Disqualifying Event exists with respect to

you. You agree to provide the Fund to which you are subscribing pursuant to this Subscription Agreement any information that the Fund may reasonably request in order to determine whether you are a Disqualified Person, including, without limitation, filings with, and records of, courts and regulators. You agree to provide the Fund any information that the Fund may reasonably request in connection with the Fund's compliance with section (e) of Rule 506 of the 1933 Act. You further agree that the Fund may disclose to investors and prospective investors in the Fund (i) information provided by you in your response to the questions above and any other information that you provide in connection therewith and (ii) any other information that the Fund determines is necessary to disclose in connection with its obligations under section (e) of Rule 506 of the 1933 Act, including without limitation, your identity. You agree to promptly notify the Fund if a Disqualifying Event occurs with respect to you. You further agree that if any Disqualifying Event occurs with respect to you on or after September 23, 2013, if you would otherwise have the right to vote more than 20% of the Fund's outstanding voting equity securities (calculated on the basis of voting power), notwithstanding anything to the contrary in the Partnership Agreement (as defined in the Offering Memorandum), your voting rights with respect to the Fund will be limited to 19.9% of the Fund's outstanding voting equity securities (calculated on the basis of voting power) unless and until the Fund determines otherwise in its sole discretion. Furthermore, upon the occurrence of a Disqualifying Event with respect to you, the General Partner and the Fund may, in their sole discretion, take any action they determine necessary or advisable in connection with compliance with applicable regulations, including, without limitation, redeeming all or a portion of your Interest in accordance with the Partnership Agreement, or treating you as a defaulting Limited Partner (as defined in the Offering Memorandum) of the Fund and imposing any or all of the penalties applicable to a defaulting Limited Partner, in each case, in accordance with, and to the extent set forth in the Partnership Agreement.

PLEASE SIGN AND COMPLETE THE SUBSCRIBER

AND GS OFFEREE SIGNATURE BLOCKS ON PAGE 9; 93;

11

SIGNATURE PAGE

Subscriber Name

Signature

Date

Title of Authorized
Signatory
(if applicable)

(If the GS Offeree is different from the Subscriber, also complete the signature block below.)

GS Offeree's Name

GS Offeree's Signature

Date

12

FORM OF SUBSCRIPTION AGREEMENT FOR
PARTICIPANTS IN THE LONG TERM EXECUTIVE
CARRIED INTEREST INCENTIVE PROGRAM

Class A Limited Partnership Interests

Class O Limited Partnership Interests

By signing the Subscriber Signature Page, Consent and Power of Attorney (the "Subscriber Signature Page") into which this subscription agreement (collectively with the Subscriber Signature Page, this "Subscription Agreement") is incorporated by reference, the

subscriber (the "Subscriber") hereby tenders a subscription and applies for the purchase or acquisition of Class A limited partnership interests ("Class A Interests") and/or Class O limited partnership interests ("Class O Interests") and together with Class A Interests, the "Interests") in § 93; (the "Fund"), in the aggregate amount set forth in the Subscriber Signature Page. The Subscriber understands that the Fund reserves the right to reduce in whole or in part, in any order (relative to other Subscribers), the amount subscribed for in the Subscriber Signature Page, including, without limitation, the proportion of Carried Interest to which any Class O Interest(s) issued to you relates, such reduction to be in the Fund's sole discretion. The amount, if any, of the Subscriber's subscription that the Fund accepts and approves is referred to herein as the "Subscription Amount" or "capital commitment." If the Subscriber is an entity, each of the Subscriber and the individual named as the GS Offeree in the Subscriber Signature Page (the "GS Offeree") represents and warrants to the Fund and the Authorized Person (as defined below) that the entity is controlled by the GS Offeree. Capitalized terms not otherwise defined herein have the meaning set forth in the Partnership Agreement (as defined below) or the offering memorandum for the Fund, dated § 93;, as supplemented through the date hereof (the "Offering Memorandum").

§ 91; § 93;

Further, the Subscriber hereby acknowledges and agrees as follows:

1.
Receipt of the Offering Memorandum

The Subscriber acknowledges receipt of the Offering Memorandum for the Fund, which includes the private placement memorandum, dated § 91; § 93; (as amended and supplemented from time to time), for the Fund. The Offering Memorandum describes the terms and conditions of the offering of the Interests and the special risks of an investment in the Fund. The Access Funds are being established to invest all or substantially all of their committed capital in a diversified set of equity-oriented funds sponsored by Goldman Sachs Asset & Wealth Management, including § 91; § 93;. The § 91; § 93; Funds are collectively referred to as the "Underlying Funds" and each, separately, an "Underlying Fund." The Access Funds are expected to invest directly or indirectly in the Underlying Funds, and the Underlying Funds are, in turn, expected to invest alongside the § 91; § 93; funds formed for clients of Goldman Sachs (such funds, the "External Funds").

2.
Adoption of the Partnership Agreement, Subscription Agreement and Other Terms and Conditions

(a)
The Subscriber has carefully read and fully understands, or will carefully read and fully understand, the form of the Amended and Restated Agreement of Limited Partnership Agreement of the § 91; § 93;, a copy of which has been, or will be, made available to the Subscriber (as the same may be amended from time to time, the "Partnership Agreement"). The Subscriber hereby accepts, adopts and agrees to be bound by each and every provision contained in the Partnership Agreement, hereby agrees to be a limited partner under the Partnership Agreement and hereby acknowledges and agrees that if the Subscriber's subscription is accepted in whole or in part, the Subscriber shall,

Annex A

with no further action on the Subscriber's part, become a limited partner in the Fund. By signing the Subscriber Signature Page, the Subscriber further agrees that, effective on the date the Subscriber becomes a limited partner in the Fund, the Subscriber will become a party to the Partnership Agreement and the Subscriber Signature Page will also serve as a counterpart signature page to the Partnership Agreement of the Fund. The Subscriber agrees to fund the total Subscription Amount, including, without limitation, funds necessary to satisfy any of the Subscriber's indemnification and Carried Interest clawback obligations (and any applicable fees and expenses and any interest due on late payments), in accordance with the terms of the Partnership Agreement and this Subscription Agreement.

(b)
The Subscriber has carefully read and fully understands this Subscription Agreement and the Disqualified

Person Disclosure included in the Subscription Agreement and Materials into which this Subscription Agreement is incorporated by reference (the "Disqualified Person Disclosure"). The Subscriber hereby accepts, adopts and agrees to be bound by this Subscription Agreement.

(c)

The Subscriber has carefully read and fully understands the Offering Memorandum. The Subscriber hereby accepts, adopts and agrees to be bound by the various provisions, terms and obligations of an investment and ongoing participation in the Fund as described in the Offering Memorandum including, without limitation, the provisions, terms and obligations described in the following sections of the Offering Memorandum: § 58; § 91; § 93;.

3.

Provision of Credit Support

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(a)

The following is applicable only to Subscribers that are GS Offerees who are executive officers or directors of The Goldman Sachs Group, Inc. or its successor or affiliated companies ("SOX Insiders") and to Subscribers that are controlled by SOX Insiders.

The Subscriber understands that as a result of Section 402 of the United States Sarbanes-Oxley Act of 2002, as amended (the "Sarbanes-Oxley Act"), Goldman Sachs & Co. LLC (together with its affiliates, "Goldman Sachs") is prohibited from extending, maintaining or arranging for the extension of credit in the form of a personal loan to or for the Subscriber. The Subscriber hereby acknowledges that The Goldman Sachs Group, Inc. or any of its affiliates, including, without limitation, Goldman Sachs, or any third party may, subject to applicable law, make or arrange a loan to or guarantee debt of the Fund, any Underlying Fund, § 91; § 93; (the "Main Offshore Fund"), § 91; § 93; (the "UK Offshore Fund" and, together with the Fund and the Main Offshore Fund, the "Access Funds") or any investment or financing vehicle organized by or for the Fund (an "Investment Vehicle"), which will be supported by a pledge by the Fund of its rights under the Partnership Agreement and its subscription agreements with limited partners in the Fund, including, without limitation, this Subscription Agreement, to require the limited partners in the Fund who are not SOX Insiders to fund their commitments under their subscription agreements and/or the Partnership Agreement. The Subscriber further acknowledges that Goldman Sachs may lend money to, or on behalf of, any Underlying Fund or any Investment Vehicle to finance an investment prior to the funding of a commitment under this Subscription Agreement. The Subscriber understands that for the purposes of compliance with the Sarbanes-Oxley Act, the Fund may require the Subscriber to fund its commitments under this Subscription Agreement in advance of limited partners in the Fund who are not SOX Insiders upon not less than five calendar days' notice and/or in disproportionately larger amounts, or in lieu of pre-funding commitments under this Subscription Agreement, the Fund may require SOX Insiders to

A-2

purchase Preferred Interests (as defined below) or invest through Alternative Investment Vehicles which do not incur leverage in connection with a particular investment. The Subscriber understands that the Subscriber's unfunded capital commitments under this Subscription Agreement may, but need not, be pledged to support any such loan or guarantee. The Subscriber understands that other circumstances may arise in which considerations under the Sarbanes-Oxley Act will make it necessary or advisable for the Fund, in its sole discretion, to require pre-funding of commitments by the Subscriber under this Subscription Agreement in advance of other limited partners of the Fund who are not SOX Insiders and upon not less than five calendar days' notice.

(b)

§ 91;The following is applicable only to Subscribers that are neither a SOX Insider nor controlled by a SOX Insider.

The Subscriber hereby acknowledges that, in the event Goldman Sachs or any third party makes a loan to or guarantees any debt of any Underlying Fund or any Investment Vehicle, the Fund may pledge or assign, or otherwise make available as credit support for any loan or guarantee (collectively,

“Credit Support”), assets of the Fund. Without limiting the foregoing, the Fund may contribute or pledge the rights and interests of the Fund under this Subscription Agreement and/or the Partnership Agreement in respect of the Subscriber’s uncalled capital commitment evidenced by the Interest acquired by the Subscriber and any other payment obligations of the Subscriber to the Fund, and the Fund may assign or pledge the rights and interests of the Fund in the capital commitment or other payment obligations to the Fund from the Subscriber, including, without limitation, the right to call and receive capital pursuant to the capital commitment, as collateral for the obligations of any Underlying Fund or any Investment Vehicle in respect of any loan or guarantee. In the event of a default on any loan or performance under any guarantee, the Subscriber understands that the lender and/or guarantor may have recourse to the Subscriber’s obligations to make additional contributions or other payments to the Fund, including, without limitation, any remainder of the Subscriber’s Subscription Amount to be paid hereunder, which obligations the Subscriber will perform in full and without condition regardless of any defense to, or right of offset against, or counterclaim with resp